M/S Ramayana Ispat Private Limited vs Rajasthan Vidyut Prasaran Nigam ... on 29 November, 2022

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
(Appellate Jurisdiction)
APPEAL NO.140 OF 2016

Dated: 29.11.2022
Present: Hon'ble Mr. Justice R.K. Gauba, Officiating Chairperson
Hon'ble Mr. Sandesh Kumar Sharma, Technical Member
In the matter of:

M/s Ramayana Ispat Private Limited
A-48, Ground Floor, Wazir Pur Industrial Area,
Delhi-110 052 .... Appellant(s)

VERSUS

1. Rajasthan Vidyut Prasaran Nigam Limited
   Vidhyut Bhawan, Jyoti Nagar
   Jaipur-302 005, Rajasthan

2. Jaipur Vidyut Vitran Nigam Limited
   Vidyut Bhawan, Jaipur-302 005

3. Rajasthan State Electricity Regulatory Commission
   Vidhyut Viniyamak Bhawan
   Jaipur - 302005, Rajasthan .... Respondents

Counsel for the Appellant (s) : Mr. Manu Seshadri
Mr. Aveak Ganguly

Counsel for the Respondent (s) : Mr. Pradeep Misra
Mr. Manoj Kr. Sharma for R-1
Mr. Sanjay Agarwal
Mr. Naman Mittal for R-2
Mr. Raj Kumar Mehta
Ms. Himanshi Andley for R-3

J U D G M E N T (Oral)

PER HON'BLE MR. JUSTICE R.K. GAUBA, OFFICIATING CHAIRPERSON

1. The appellant had approached the third respondent, Rajasthan Electricity Regulatory Commission (hereinafter referred to variously as, "RERC" or "State Commission") by Petition no. RERC-503/15 invoking its jurisdiction under Section 86(1)(k) and Section 129 of Electricity Act, 2003 read with Rajasthan Electricity Regulatory Commission (Terms & Conditions for Open Access) Regulations, 2004 as well as Rajasthan Electricity Regulatory Commission (Intra-State ABT) Regulations, 2006 raising grievances as to non-settlement of UI account by the first and second respondents herein (beneficiaries). The said petition was disposed of by the State Commission by Order dated 09.03.2016 holding that no relief could be granted to the petitioner, the case of the petitioner being similar to that of M/s Shree Cement Ltd decided earlier by the State Commission by Order dated 04.12.2015, observing as under:

"12...

"13. As regards setting of past accounts as per deviation settlement mechanism of RERC (Intra-State ABT) Regulations, 2006 we find that it can be implemented only after procurement, installation and commissioning of ABT & ToD meters and their integration with SLDC which is also requirement of ABT Regulations, 2006. So long as the said system is not installed, the SLDC will not be able to apportion UI charges as prayed for. We, therefore, hold that the said prayer cannot be accepted as admittedly the system contemplated for implementation of ABT Regulations is not in place and the accounts have to be settled only based on ABT meters installed at all ends and not only based on Petitioner's metering."

2. The appellant in challenge to the above said Order dated 09.03.2016 by the appeal at hand places reliance on two decisions of Central Electricity Regulatory Commission (CERC) rendered on 29.09.2017 in the matters of Rajasthan Steel Chambers v State Load Despatch Centre & Ors. and M/s National Engineering Industries Limited v State Load Despatch Centre & ors., reported as 2017 SCC OnLine CERC 296 and 2017 SCC OnLine CERC 297 respectively.

3. The learned counsel for the respondents fairly conceded that the matter may have to be revisited by RERC in light of the view taken by CERC in the above decisions and, therefore, the request for remit, as is now pressed by the appellant, may be granted.

4. We order accordingly.

5. We set aside the impugned Order dated 09.03.2016 and remit the matter arising out of the Petition no. RERC-503/15 of the appellant to the State Commission (RERC) for fresh consideration and decision, in accordance with law.

6. For removal of doubts, if any, we must add that nothing in this judgment shall be treated the expression of opinion by this tribunal either way on the issues which arise. Similarly, we would expect the State Commission to approach the matter afresh with an open mind, not feeling influenced or bound by views taken earlier. All contentions are kept open.

7. The appeal is disposed of in above terms.

PRONOUNCED IN THE OPEN COURT ON THIS 29TH DAY OF NOVEMBER, 2022.

(Sandesh Kumar Sharma) Technical Member	(Justice R.K. Gauba) Officiating Chairperson

pr/vt